



USCG Office of Cybersecurity Policy (CG-MCP) Mission Management System (MMS) Work Instruction (WI)



Category	Administrative				
Title	Waiver and Equivalency Guidance for Requirements of 33 CFR Part 101, Subpart F - Cybersecurity				
Serial	MCP-WI-002	Orig. Date	03June26	Rev. Date	N/A
Signature Authority	C. N. Parham Chief, Office of Maritime Cybersecurity Policy				
Disclaimer:	This guidance is not intended to, nor does it, impose legally binding requirements on any party. The regulatory requirements in reference (a) remain in effect and are unchanged by this policy letter. It is advisory in nature and intended to ensure consistent application of 33 CFR Part 101, Subpart F provisions across all regulated entities. The guidance represents the Coast Guard's current thinking on this topic and may assist industry, mariners, the public, and the Coast Guard, as well as other federal and state regulators, in applying statutory and regulatory requirements.				
References:	a) Title 33, Code of Federal Regulations (CFR), Part 101.665 b) CG-5PC Policy Letter 01-26, Cybersecurity Assessment: Initial Scoping and Process				
Enclosures:	(1) Decision Guidance for Waivers and Equivalencies under 33 CFR 101.665 (2) Recommended Process for Submitting a Waiver or Equivalency Request Waiver Application Process (3) Submission Checklist (4) Waiver Request Letter Template Upon Determination of No/Minimal Risk				

- A. Purpose. This work instruction provides guidance for waivers and equivalency determinations of cybersecurity requirements under 33 CFR 101, Subpart F - Cybersecurity, as provided in reference (a).
- B. Action. The Coast Guard and industry should use this work instruction for the submission, approval, and maintenance of waivers and equivalencies for cybersecurity requirements as allowed by reference (a). This guidance harmonizes guidance for vessels, facilities, and Outer Continental Shelf (OCS) facilities for the preparation and submission of requests for a cybersecurity requirement to be waived or satisfied through an equivalent measure that achieves the same or higher level of protection.
- C. Background. The regulations in 33 CFR Part 101, Subpart F – Cybersecurity became effective on July 16, 2025. This subpart sets minimum cybersecurity requirements for U.S.-flagged vessels, facilities, and OCS facilities to safeguard the security and resilience of the Marine Transportation System (MTS). Per reference (a), an owner or operator, after completion of the required Cybersecurity Assessment (CSA), may seek a waiver or an equivalency determination for the requirements in 33 CFR Part 101, Subpart F using the standards and submission procedures applicable to a U.S.-flagged vessel, facility, or OCS facility as outlined in [33 CFR 101.130](#), [104.130](#), [104.135](#), [105.130](#), [105.135](#), [106.125](#), or [106.130](#). The CSA forms the evidentiary basis for waiver and equivalency determinations.
- D. Applicability. This work instruction applies to all U.S.-flagged vessels, facilities, and OCS facilities required to have a security plan under 33 CFR 104, 105, and 106. In this guidance, MTSA-regulated vessels, facilities, and OCS facilities will be referred to collectively as “entities” for brevity; however, it does not change the specific responsibility designations in Reference (a). If this guidance is intended to apply to a

particular subset of entities, it will be specifically identified. This work instruction will be distributed by electronic means only. It is available at the [USCG Maritime Industry Cybersecurity Resource Website](#).

E. Policy.

1. A waiver is a formal request by an owner or operator, submitted after completing the Cybersecurity Assessment (CSA), as required by Reference (a), asking the Coast Guard to grant relief from a specific cybersecurity requirement in 33 CFR 101 Subpart F that the owner or operator considers unnecessary in light of the nature or operating conditions of the entity.
2. An equivalency is a formal request by an owner or operator, submitted after completing the CSA, as required by Reference (a), asking the Coast Guard to use alternative safeguard(s) that meet or exceed the effectiveness as a requirement in the regulation.

The following enclosures are provided to assist owners/operators with the submission of waiver and/or equivalency requests:

- a. Enclosure (1): Guidance - deciding whether to request a waiver or equivalency.
- b. Enclosure (2): Guidance - recommended process to prepare and submit a request.
- c. Enclosure (3): Checklist - as a guide to help ensure complete submission.
- d. Enclosure (4): Template - no/minimal IT/OT waiver request.

- F. Consistency and Transparency. A unified process ensures that all MTS entities, regardless of size, type, or digital maturity, follow the same sequence for waiver and equivalency determinations. By basing every request on a completed CSA as outlined in Reference (b), the Coast Guard can maintain national consistency in evaluation of requests while preserving flexibility for unique operational conditions.

G. Enclosures.

1. [Enclosure \(1\) to CG-MCP-WI-002.pdf](#)
2. [Enclosure \(2\) to CG-MCP-WI-002.pdf](#)
3. [Enclosure \(3\) to CG-MCP-WI-002.pdf](#)
4. [Enclosure \(4\) to CG-MCP-WI-002.pdf](#)

C.N. Parham

C. N. PARHAM
Chief
U.S. Coast Guard Office of Maritime
Cybersecurity Policy
By direction